

NOTICE OF RESCISSION

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To: Wendell Prine

From: Dermot A. Cruller

Date: 2 May 2026

Matter: Cruller v. Prine — Count II

1. The instrument

On **1 April 2025** you offered the undersigned one glazed doughnut over the hedge dividing the parties' properties. You described the doughnut only as "neat." You did not state, and the undersigned did not know, that the doughnut was said to carry a term conveying the undersigned's soul.

The undersigned took a partial bite on that date and set the remainder aside. The remainder was consumed on **14 April 2026**.

2. Grounds for rescission

The purported agreement is voidable, and is hereby rescinded, on each of the following independent grounds.

- **Fraudulent concealment of a material term.** Assent runs only to terms the offeree had a reasonable opportunity to read. A term placed inside the instrument, where it cannot be reached without destroying the thing being accepted, is not such a term. Describing the instrument as merely "neat" converted that silence into an affirmative misrepresentation.
- **No meeting of the minds.** The undersigned never assented to the conveyance of anything, having never been told that a conveyance was proposed.
- **Unconscionability.** The consideration received was one doughnut.

3. No affirmance

Consumption of the remainder on **14 April 2026** was not an affirmance of the purported agreement. Knowledge of the material facts constituting the fraud is an essential requirement of waiver or election, and the undersigned first learned of the term on **15 April 2026** — after the instrument had been consumed in full.

4. Timeliness

An action for relief on the ground of fraud accrues upon the discovery by the aggrieved party of the facts constituting the fraud. This notice is served promptly after that discovery.

5. Demand

Demand is made that you confirm in writing, within fourteen days, that you assert no interest of any kind in the soul of the undersigned. Tender of restitution for the doughnut is available on request.

Dermot A. Cruller

By: _____